

Andhra Pradesh Civil Services (Conduct) Rules, 1964

Source: <https://indiankanoon.org/doc/14776723/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Andhra Pradesh - Act

Andhra Pradesh Civil Services (Conduct) Rules, 1964

ANDHRA PRADESH

India

Andhra Pradesh Civil Services (Conduct) Rules, 1964

Rule ANDHRA-PRADESH-CIVIL-SERVICES-CONDUCT-RULES-1964 of 1964

Published on 17 April 1964

Commenced on 17 April 1964

[This is the version of this document from 17 April 1964.]

[Note: The original publication document is not available and this content could not be verified.]

Andhra Pradesh Civil Services (Conduct) Rules, 1964

Published vide Notification G.O.Ms.No. 468, G.A.D., Dated 17-4-1964

In exercise of the powers conferred by the proviso to Article 309 of the Constitution of India, the Governor of Andhra Pradesh hereby makes the following rules to regulate the conduct of Government employees :

1.

Short title and application:

(1)

These rules may be called the Andhra Pradesh Civil Services (Conduct) Rules, 1964.

(2)

They shall apply to every person who is a member of a civil service of the State or holds any civil post under the State or in connection with the affairs of the State :

Provided that nothing in these rules shall apply to-

- (a)
the Judges of the High Court of Andhra Pradesh;
- (b)
the members of the All-India Services ;
- (c)
persons who are not full-time employees but are engaged by Government to do certain work without prejudice to the regular practice by such persons of their professions in other respects, subject to the exception that Rules 14, 15, 17, 18 and 19 shall apply to the Advocate-General, Government Pleaders, Public Prosecutors and Pleaders doing Government work;
- (d)
the members of the village establishment;
- (e)
persons paid from contingencies.

2.

Definitions:

- In these rules, unless the context otherwise requires,-

- (i)
"District" means a revenue district;
- (ii)
"Government" means the Government of Andhra Pradesh and includes any subordinate authority which may be declared by them, subject to such conditions as they think fit, to be Government for all or any of the purposes of these rules :
Provided that the powers and functions of Government under these rules shall, in relation to the members of the staff of the Governor's Secretariat, be exercised by the Governor of Andhra Pradesh;
- (iii)
"Government employee" means any person who is a member of a civil service of the State of Andhra Pradesh or holds any civil post under the State or in connection with the affairs of the State, whether he is on duty or under suspension or on leave or on foreign service, either within or outside the State;
- (iv)
"Head of Department" means the authority declared as such in Appendix I to the Andhra Pradesh Financial Code, Volume II.
- (v)
"Member of the Family" in relation to a Government employee, includes the spouse, son, daughter, step-son or step-daughter of such employee, whether residing with, such employee or not, and any other person related to, and residing with such employee and wholly dependent on such employee, but does not include a spouse legally separated from such employee, or a son, daughter, step-son, or step-daughter who is no longer in any way dependent upon such employee, or of whose custody such employee is deprived by law;
- (vi)
"State" means the State of Andhra Pradesh.

3.

General:

- (1)
Every Government employee shall be devoted to his duty and shall maintain absolute integrity, discipline, impartiality and a sense of propriety.
- (2)
No Government employee shall behave in a manner which is unbecoming of such employee or derogatory to the prestige of Government.
- (3)
No Government employee shall act in a manner which will place his official position under any kind of embarrassment.
- (4)

No Government employee shall, in the performance of his official duties or in the exercise of powers conferred on him, act otherwise than in his best judgement except when he is acting under the direction of his official superior, and shall, where he is acting under such direction, obtain the direction in writing, wherever practicable, and where it is not practicable to obtain the direction in writing, shall obtain written confirmation of the direction as soon thereafter as possible. It shall be incumbent on such official superior to confirm in writing the oral directions given by him, and in any event, he shall not refuse such written confirmation where a request is made by the Government employee to whom such direction was given.

Explanation :- Nothing in sub-rule (4) shall be construed as empowering a Government employee to evade his responsibilities by seeking instructions from, or approval of, an official superior where such instructions are not necessary under the scheme of distribution of powers and responsibilities.

(5)

[Every Government servant holding a superior post shall take all possible steps to ensure the integrity and devotion to duty of all government servants for the time being under his control and authority.

Explanation: - A Government servant who habitually fails to perform the task assigned to him within the time set for the purpose and with the quality of performance expected of him shall be deemed to be lacking in devotion to duty.]

[Added by G.O. Ms. No. 381 G. A. (Ser.C) Department Dated 18-12-2003]

(6)

[Prohibition regarding employment of children below 14 years of age : -No member of the service shall employ to work any child below the age of 14 years.]

[Added by G.O. Ms. No. 555, G.A.(Ser.C) Department , Dated 14-12-2005]

3A.

Joining of associations by Government employees:

- No Government employee shall join, or continue to be a member of, an association the object or activities of which are prejudicial to the interests of the sovereignty and integrity of India or Public Order.

[3B. Promptness and courtesy: - No Government Servant shall-

(a)

in the performance of his Official duties, act in a discourteous manner ;

(b)

in his Official dealings with the public or otherwise adopt dilatory tactics or wilfully cause delays in disposal of the work assigned to him.]

[3C. Prohibition of sexual harassment of working women: - No Government Servant shall in the performance of his Official duties act in a discourteous and discriminate manner with any working women or indulge in sexual harassment either directly or by implication.

Explanation : - For the purpose of this rule, 'Sexual Harassment' includes such unwelcome activities either directly or by implication have-

(a)

physical contact and advances;

(b)

a demand or request for sexual favours;

(c)

sexually coloured remarks;

(d)

showing pornography;

(e)

any other unwelcome physical, verbal or non-verbal conduct of sexual nature.

Such conduct which amounts to a special offence under the Indian Penal Code, 1860 or under any other law for the time being in force.]

[Added by G.O.Ms.No. 322, General Administrator (Ser.C), Dated 19-7-1999]

[3D. Complaints Committee will be deemed to be an Inquiry Committee and the report submitted by it shall be deemed to be an inquiry report under A.P. Civil Services (Classification, Control and Appeal) Rules, 1991]

[Added by G.O. Ms. No. 556, G.A.(Ser.C) Department , Dated 14-12-2005]

.

4.

Strikes:

- No Government employee shall participate in any strike or similar activities or incitement thereto.

Explanation : - The expression "similar activities" shall be deemed to include

(i)

absence from duty or work without permission;

(ii)

neglect of duty with the object of compelling any superior officer or Government to take or omit to take any official action;

(iii)

any demonstrative fast, like "hunger strike" with the object mentioned in item (ii); or

(iv)

concerted or organised refusal on the part of Government employees to receive their pay.

5.

Demonstrations:

- No Government employee shall participate in any demonstration which is against the interests of the sovereignty and integrity of India or public order.

6.

Gifts, services, entertainments, addresses and other forms of felicitations:

(1)

No Government employee shall,-

(i)

accept, or permit any member of his family to accept, from any person any gift, the receipt of which, or any service the performance of which, will place such employee under any kind of official obligation or embarrassment in relation to any person; if, however, the offer of a gift cannot be refused without giving undue offence to the donor, it may be accepted and the matter reported to the Government for decision as to its disposal; or

(ii)

receive any address or accept any felicitation or entertainment held in his honour:

Provided that nothing in this sub-rule shall apply to-

(a)

gifts of flowers or fruits of trifling value;

(b)

gifts of value, reasonable in all circumstances of the case, from relations, and gifts of a value of less than two hundred rupees from personal friends presented to a Government employee or to any member of his family on ceremonial occasions such as weddings;

(c)

the performance of an occasional service of a trifling character;

(d)

the sitting for a group photo with officers and the members of the staff of his office.

(iii)

stay in any Guest House owned by a private person and enjoy his hospitality.

(2)

If any question arises whether the receipt of a gift or the performance of a service places the Government employee under any kind of official obligation or embarrassment, the decision of Government thereon shall be final.

(3)

No Government employee shall receive any trowel, key, scissors or other similar article offered to him in connection with any ceremonial function such as the laying of foundation stone or the opening of a building.

[6A. Every Government employee shall intimate to the Competent Authority within fifteen days from the date of receipt of any foreign currency or foreign goods of value of more than Rs. 10,000/- from any person by him or by person of his family or by any person on their behalf, in the form given in the Annexure III to these rules]

[G.O.Ms.No. 354, G.A.D., Dated 8-8-1996]

.

7.

Subscriptions:

- No Government employee shall, except with the previous sanction of Government, ask for, or accept, or in any way participate in the raising of, any subscriptions or other pecuniary assistance in pursuance of any object whatsoever.

8.

Lending, borrowing and insolvency:

(1)

No Government employee shall, save in the ordinary course of business with a bank or a public limited company, himself or through any member of his family or any person acting on his behalf,-

(a)

lend or borrow or deposit money as a principal or agent, to, or from, or with, any person or firm or private limited company within the local limits of his authority or with whom he is likely to have official dealings or otherwise place himself, under pecuniary obligation to such person or firm; or

(b)

lend money to any person at interest or in manner whereby return in money or kind is charged or paid :

Provided that Government employee may give to, or accept from a relative or a personal friend a purely temporary loan of small amount free of interest or operate a credit account with a bona fide tradesman or make an advance of pay to his private employee;

Provided further that nothing in this sub-rule shall apply in respect of any transaction entered into by a Government employee with the previous sanction of the Government.

(1A)

When a Government employee is appointed or transferred to a post of such nature as would embarrass or influence him in the discharge of his official duties or involve him in the breach of any of the provisions of sub-rule (1), he shall forthwith report the circumstances to the Government and shall thereafter act in accordance with such order as may be made by the Government.

(2)

The prohibition in sub-rule (1) shall not apply to-

(i)

any transaction of a Government employee with a co-operative society registered or deemed to have been registered under the law relating to co-operative societies for the time being in force in the State;

(ii)

a Government employee who lends money while acting as an executor, administrator or a trustee without profit or advantage to himself;

(iii)

a Government employee who belongs to a Joint Hindu family carrying on the business of money lending as an ancestral profession, provided he takes no active share in that business and is not employed in the district in which the said business of the family is carried on.

(3)

A Government employee shall so manage his private affairs as to avoid habitual indebtedness or insolvency. A Government employee who is involved in a legal proceeding for insolvency shall forthwith report the full facts to Government.

9.

Acquiring or disposing of movable or immovable property:

(1)

No Government employee shall, except after previous intimation to Government, acquire or dispose of, or permit any member of his family to acquire or dispose of, any immovable property by exchange, purchase, sale, gift or otherwise, either by himself or through others.

Note: - When a Government servant or a member of his family accepts "advance of rent" from a prospective tenant for the construction or completion of a building to be rented, it constitutes a transaction in immovable property and falls within the scope of the above sub-rule :

[Provided that any such transaction conducted otherwise than through a regular or reputed dealer, viz.,

(i)

Banking Institutions, including Co-operative Banks

(ii)

Financial Corporations set up by the State Governments which provide loans for house construction ;

(iii)

Apex Co-operative Housing Finance Institutions such as Delhi Co-operative Housing Finance Society ; and

(iv)

Public Companies formed and registered in India with the main object of carrying on the business of providing long term finance for construction or purchase of houses in India for residential purposes like the Housing Development Finance Corporation Limited, LIC., CANFIN and Nationalised banks, shall be with the previous sanction of Government];

Provided further that no Government employee shall acquire or permit any member of his family to acquire any immovable property in any area in which land developmental schemes are under execution by or contemplation of, the Department in which the employee is employed.

[Provided further that Government employee shall submit the particulars giving prior intimation or seeking prior sanction, in the following format :

(1)

Name and Designation :

(2)

Scale of pay and present pay :

(3)

Purpose of application/sanction for transaction/prior intimation of transaction :

(4)

Whether property is being acquired or disposed

(5)

Probable date of acquisition/disposal of property :

(6)

Mode of acquisition/disposal :

(7)

(a)

Full details about location Viz., Municipal No., Street/Village, Mandal, District and State in which situated :

(b)

Description of the property, in the case of cultivable land, dry or irrigated land :

(c)

Whether free hold or leasehold :

(d)

Whether the applicant's interest in the property is in full or part (in case of partial interest, the extent of such interest must be indicated) :

(e)

In case the transaction is not exclusively in the name of the Government Servant, particulars of ownership and share of each member :

(8)

Sale/purchase price of the property (Market value in the case of gifts) :

(9)

In cases of acquisition, source or sources from which financed / proposed to be financed-

(a)

Personal savings :

(b)

Other sources giving details :

(10)

In the case of disposal of property, was requisite sanction / intimation obtained/given for its acquisition. A copy of the

sanction/acknowledgement should be attached :

(11)

(a)

Name and address of the party with whom transaction is proposed to be made :

(b)

Is the party related to the applicant ? If so, state the relationship :

(c)

Did the applicant have any dealings with party in his official capacity at any time, or is the applicant likely to have any dealings with him in the near future ?

(d)

How was the transaction arranged ? (Whether through any statutory body or a Private agency through advertisement or through friends and relatives. Full particulars to be given).

(12)

Any other relevant fact which the applicant may like to mention.

DECLARATION

I,.....hereby declare that the particulars given above are true. I request that I may be given permission to acquire/dispose of property as described above from / to the party whose name is mentioned in item 11 above.

OR

I,.....hereby intimate the proposed acquisition / disposal of property by me as detailed above. I declare that the particulars given above are true.

Station :

Date :

Signature :

Designation :

Note: - 1. In the above form, different portions may be used according to requirement.

2. Where previous sanction asked for, the application should be submitted atleast 30 days before the proposed date of the transaction.

Provided also that the Government employee shall submit the request to Government seeking prior permission duly obtaining acknowledgement of having made such a request and if no permission is received within one month, he/she may go ahead with the transaction.]

[Added by G.O.Ms.No. 26, General Administrator (Ser.C) Department , Dated 20-1-1998]

(2)

A Government employee who enters into any transaction concerning any movable property exceeding [rupees fifty thousand]

[Substituted by G.O.Ms.No. 681, G.A. (Ser.-C), Dated 11-9-2007]

in value, whether by way of purchase, sale or otherwise, shall forthwith report such transaction to Government :

Provided that any such transaction conducted otherwise than through a regular or reputed dealer shall be with the previous sanction of Government.

(3)

Nothing in sub-rule (2) shall apply to any purchases made by a Government employee for the performance of weddings, religious or social functions.

(4)

No Government employee shall engage in any transaction which is of a speculative character relating to the purchase, sale or exchange of any immovable or movable property.

(5)

The provisions of sub-rules (1) and (2) shall not apply to -

(i)

the acquisition or possession of any property as trustee, executor or administrator;

(ii)

any Government land which is sold or granted on lease to any Government employee, in accordance with the rules in force.

(6)

Except with the sanction of Government, no Government employee shall purchase, directly or indirectly in a sale by auction or otherwise conducted by or under the orders of the Department in which he is employed, any immovable or movable property, owned or confiscated by Government.

(7)

[Sub-rule 7 Substituted by G.O. Ms. No. 52, GA. (Ser-C), Dated 4-2-1988]

Every Government employee, other than a member of the Andhra Pradesh Last Grade Service and a Record Assistant in the Andhra Pradesh General Subordinate Service, shall on first appointment to the Government Service submit to Government a Statement of all immovable property/properties irrespective of its value and movable property/properties whose value exceeds [rupees fifty thousand]

[Substituted by G.O. Ms. No. 681, G.A. (Ser.-C), Dated 11-9-2007]

owned, acquired, or inherited by him or held by him on lease or mortgage either in his own name or in the name of any member of his family, in the forms prescribed in Annexures I and II separately. He shall also submit to Government before 15th January of each year, through the proper channel, [a declaration in the forms given in Annexures I and II of all immovable property/properties and movable property/properties whose value exceeds [rupees fifty thousand]

[Substituted by G.O. Ms. No. 471, G.A.D., Dated 17-9-94]

[Added by G.O.Ms.No. 26, General Administrator (Ser.C) Department, Dated 20-1-1998]

owned, acquired, or inherited by him or held by him on lease or mortgage, either in his own name or in the name of any member of his family. The declaration shall contain such further information as Government may, by a general or special order, require. If, in any year, a Government employee has not acquired or disposed of any immovable or movable property or any interest therein, he shall submit declarations to that effect :

Provided that every Head Constable, Police Constable and every person of the corresponding rank in the Armed Reserve and Special Police Battalions and every Non-Gazetted Officer of equal rank in other branches of the Police Departments shall submit the statements in forms prescribed in Annexures I and II and the declaration aforesaid to the Superintendent of Police or the Commandant concerned, as the case may be.]

(8)

The Government or any authority empowered by them in this behalf may, at any time, by general or special order, require a Government employee to submit, within a specified period, a full and complete statement of all immovable property and movable property, of the specified value, held or acquired by him or by any member of his family. Such statement shall, if so required by Government or by the authority so empowered, include particulars of the means by which, or the sources from which, such property was acquired.

(8)

[(A) The Government or any authority empowered by them in this behalf may, require a Government servant to render a full and true account of the cash found in his possession at any time and such account shall include particulars of the means by which and the source from which such cash was acquired.

(8)

(B)

The Government or any authority empowered by them in this behalf may, by general or special order require a Government servant on duty not to keep cash in his possessions beyond a specified sum and to declare the cash in his possession in the manner prescribed.]

[Added by G.O. Ms. No. 381 G.A.(Ser.C) Department Dated 18-12-2003 and amended in G.O. Ms. No. 7 G.A. (Ser.C) Department, Dated 16-01-2004]

(9)

If a Government employee receives an order of transfer to a district in which he possesses, or has an interest in, any immovable property, he shall forthwith report the fact to his immediate superior officer.

(10)

[For the purposes of this rule,-

(A)

In respect of the Government employees serving under their control, the undermentioned authorities are declared to be Government for each of the categories of employees as specified below :

I. Posts out-side the purview of the Andhra Pradesh Public Employment (Organisation of Local Cadres and Regulation of Direct Recruitment) Order, 1975, (hereinafter referred to as Presidential Order) :

1. Heads of Departments and Officers holding equivalent posts in the Department.

Government.

2. All second level Gazetted Posts and above except second level Gazetted Posts included in Schedule III of the Presidential Order.

Head of the Department.

3. First level Gazetted posts which do not fall within the purview of the Presidential Order.

Head of the Department.

4. Posts in Secretariat :

(a) Assistant Secretary to Government and above.

Chief Secretary to Government.

(b) Section Officer and Private Secretaries to Secretaries.

Private Principle Secretary/Secretary/Ex-Officio Secretary. concerned.

(c) Assistant Section Officers and all other non-Gazetted categories.

Additional/Joint Dy. Secretary Government concerned.

5. Posts in the Office of the Heads of Departments/State level offices and other offices not covered by the Presidential order.

(a) Head of the Department concerned

(b) Andhra Pradesh Public Service Commission.

(c) Secretary to Governor.

(d) Sales Tax Appellate Tribunal.

(e) Labour Court.

(f) Industrial Tribunal.

(g) Andhra Pradesh Administrative Tribunal.

6. Non-Gazetted posts in the Officers other than the Offices of the Heads of Departments and State level offices etc.

Appointing Authority.

II. Posts which fall within the purview of the Andhra Pradesh Public Employment (OLC & RDR) Order, 1975, (hereinafter referred to as Presidential Order):

1. Second level Gazetted posts which have been organised into Zonal/Multi Zonal cadres in pursuance of the provisions of the Presidential Order.

Heads of the Department.

2. First level Gazetted posts which have been organised into Zonal/Multi Zonal cadres in pursuance of the provisions of the Presidential order.

Regional Officers having jurisdiction over the respective Zones/Multi Zones in respect of the relevant local cadres where regional set-up exists, or the office next below the Head of the Department in the office of the Head of the Department where no regional set-up exists.

3. Non-Gazetted categories of posts which have been organised into Zonal, Multi Zonal cadres in pursuance of the Presidential Order.

Regional Officer or other Officers who administer the relevant

Zonal/Multi zonal cadres.

4. Non-Gazetted categories which have been organised into District or less than District cadres in pursuance of the Presidential Order.

Collectors and other District officers concerned or officers who administer such District or less than District cadres.

(B)

In respect of Government employee serving on deputation either under Central Government or any State Government or appropriate Government under which the Government employee is serving shall be –deemed to be Government[.]

10. Private trade, business and investments:

(1)

No Government employee shall engage directly or indirectly in any trade or business save in the course of his official duties.

Explanation :- Canvassing by a Government servant in support of the business of Insurance agency, Commission agency and the like, owned or managed his wife or any other member of his family shall be deemed to be a breach of this sub-rule.

(1A)

Every Government employee shall report to the Government if any member of his family engaged in a trade or business or owns or manages an Insurance Agency or Commission agency.

(2)

No Government employee shall speculate in any investment.

(3)

No Government employee shall make, or permit any member of his family to make, any investment likely to embarrass or influence him in the discharge of his official duties.

(4)

The decision of Government shall be final in respect of any question arising under this rule.

11.

Promotion and management of companies in private capacity:

- No Government employee shall, in his private capacity, except with the previous sanction of Government, take part in the promotion, registration or management of any bank or other company registered under the relevant law for the time being in force :

Provided that a Government employee may, in accordance with the provisions of any general or special order of Government, take part in the promotion, registration or management of a co-operative society registered under any law relating to co-operative societies for the time being in force in the State;

Provided further that no Government employee shall, without the previous sanction of the Government except in the discharge of his official duties, take part in promotion, registration or management of any co-operative society for Commercial purposes.

12.

Private employment:

- No Government employee shall, except with the previous sanction of Government, negotiate for or undertake any employment or work other than that connected with his official duties :

Provided that a Government employee may, without such sanction, participate in sports activities as an amateur, undertake honorary work of a social or charitable nature, or occasional work of literary, artistic or scientific character or any examinership on remuneration, offered therefor by the Union Public Service Commission, Institute of Secretariat Training & Management of Government of India, the Andhra Pradesh Public Service Commission, the State Board of Technical Education and Training or the Board of Secondary Education, Andhra Pradesh, or by any of the four Universities in the State of Andhra Pradesh, the Board of Intermediate Education, Andhra Pradesh, subject to the condition that such work or examinership does not interfere with his official duties; but he shall not undertake or shall discontinue such work; or examinership, if so directed by Government.

13.

Publication of books:

- No Government employee shall, without the previous permission of Government, publish any book, which is not purely of a literary, artistic or scientific character. While applying for permission to publish a book he shall submit to Government a manuscript copy thereof :

Provided that an employee who publishes a book with or without the previous permission of Government shall not canvass for its sale in any manner and it shall also be open to Government to insist on the sale of the copyright in any such book.

[14. Communication of Official Information: - Every Government servant shall, in performance of his duties in good faith, communicate to a member of public or any organization full and accurate information which can be disclosed under the Right to Information Act, 2005 (Central Act 22 of 2005).

Explanation : Nothing in this rule shall be construed as permitting communication of classified information in an unauthorized manner or for improper gains to a Government servant or other]

[Substituted by G.O.Ms.No. 114, G.A.D., Dated 16-3-2009]

15.

Connection with press:

- No Government employee shall, except with the previous sanction of Government, own wholly or in part, or conduct, or participate in the editing or the management of, any newspaper or non-Government publication.

16.

Participation in radio broadcast and contribution to Newspapers and Periodicals:

- [(1) No Government employee shall, except with the previous sanction of Government or any authority empowered by them in this behalf or in the course of discharge of his official duties, participate in a radio broadcast or drama or any tele-serial or feature film or contribute any article or write any letter in his own name or anonymously, pseudonymously or in the name of any other person, to any newspaper or periodical :

Provided that no such sanction is necessary if such broadcast, or drama or any tele-serial or feature film or article or letter is of a purely literary, artistic or scientific character, or if such broadcast relates to a talk arranged under the general or special order of Government; and the Government employee may accept the remuneration prescribed for such broadcasts, dramas or tele-serials or feature films or articles or letters.]

[Substituted by G.O.Ms.No. 433, G.A.D., Dated 24-8-2006]

(2)

For the purpose of sub-rule (1), a Secretary to Government or a Head of Department may exercise the power of Government in respect of Government employees under his control, and may refer any case to Government for orders if he considers such a course desirable.

17.

Criticism of the policy or action of Government or any other State Government or Central Government:

(1)

No Government employee shall, by any public utterance, written or otherwise, criticise any policy or action of Government or any other State Government or the Central Government; nor shall he participate in any such criticism :

Provided that nothing in this rule shall be deemed to prohibit any Government employee from participating in discussions, at any private meeting solely of Government employees or of any association of Government employees, of matters which affect the interest of such employees individually or generally.

(2)

No Government employee shall, in any writing published by him, or in any communication made by him to the press, or in any public utterance delivered by him, make any statement of fact or opinion which is likely to embarrass

(i)

the relations between the Central Government and the Government of any State and the People of India or any section thereof;

(ii)

the relations between the Central Government and the Government of any Foreign State.

(3)

A Government employee who intends to publish any document or to make any communication to the press or to deliver any public utterance containing statements in respect of which any doubt as to the application of the restrictions

imposed by sub-rule (2) may arise, shall submit to Government the draft of such document, communication or utterance and shall thereafter, act in accordance with such orders as may be passed by Government.

18.

Evidence before any Committee, Commission or other Authority:

(1)

No Government employee shall give evidence in connection with any inquiry conducted by any Committee, Commission or other Authority-

(a)

in India, except with the previous permission of Government;

(b)

outside India, except with the previous sanction of the Central Government.

(2)

Where any sanction is accorded under sub-rule (1), no Government employee giving such evidence shall criticise the policy of the Central Government or of a State Government.,

(3)

Nothing in sub-rule (1) shall apply to-

(a)

evidence given before a statutory committee, commission or other authority which has power to compel attendance and the giving of answers;

(b)

evidence given in judicial inquiries;

(c)

evidence given at any departmental inquiry ordered by Government or any authority subordinate to them.

19.

Taking part in politics and elections:

- [(1) No Government Employee shall be a member of, or be otherwise associated with any political party or any organisation in respect of which there is slightest reason to think that the organisation has a political aspect and takes part in politics, nor shall he participate in, subscribe in aid of, or assist in any other manner, any political movement or activity.]

[Substituted by G.O.Ms.No. 77, (GAD) (Service-C), Dated 8-2-1990]

(2)

It shall be the duty of every Government employee to endeavour to prevent any member of his family from taking part in, subscribing in aid of, or assisting in any manner, any movement or activity which is, or tends directly or indirectly to be, subversive of the Central Government or of a State Government, being prejudicial to national security; and where a Government employee is unable to prevent a member of his family from taking part in, or subscribing in aid of, or assisting in any other manner, any such movement or activity, he shall make a report to that effect to Government.

(3)

Nothing in sub-rule (2) shall apply in respect of any member of the family of Government employee standing for an election to Parliament or any House of a State Legislature or local authority or body or canvassing for other candidates in any such election.

(4)

If any question arises as to whether any movement or activity falls within the scope of this rule, the decision of Government thereon shall be final.

(5)

No Government employee shall canvass or otherwise interfere or use his influence, in connection with, or take part in, an election to Parliament or any House of a State Legislative or any local authority or body :

Provided that

(i)

a Government employee qualified to vote at such election may cast his vote but, where he does so, he shall give no indication of the manner in which he proposes to vote or has voted;

(ii)

a Government employee shall not be deemed to have contravened the provisions of this rule by reason only that he has assisted in the conduct of an election in the due performance of a duty imposed on him by or under any law for the time being in force.

(6)

The display by a Government employee on his person, vehicle, residence or any of his property, of any election symbol shall amount to using his influence in connection with an election within the meaning of sub-rule (5).

(7)

The provisions of sub-rules (5) and (6) shall not apply to a Government employee required or permitted by or under any law or order of Government to be a candidate at an election to a local authority or body.

20.

Vindication of acts and character of a Government employee as such:

(1)

No Government employee shall, except with the previous sanction of Government, have recourse to the press or any Court for the vindication of his official act which has been the subject matter of adverse criticism or an attack of a defamatory character in public.

(2)

Nothing in sub-rule (1) shall be deemed to prohibit a Government employee from vindicating his private character on an act done by him in his private capacity.

(3)

No Government employee shall, except with the previous sanction of Government, accept from any person or body compensation of any kind for malicious prosecution or defamatory attack in respect of his official act unless such compensation has been awarded by a competent court of law.

21.

Working with or under, near relatives in Government service:

(1)

Every member of a State Service shall inform his immediate official superior if a member of a State or Subordinate Service, who is his near relative, is to work under him.

(2)

Every member of a State Subordinate Service shall inform his immediate official superior if he is to work under a member of an All-India Service or a State Service who is his near relative.

22.

Employment of a member of the family in a private firm:

- Wherever a member of the family of a Government employee who is solely dependent on him wishes to accept employment under any person, or with any firm or company, having official connection with such Government employee or Government, the Government employee shall obtain the prior sanction of Government for such employment.

23.

Government employee not to deal in his official capacity with matters concerning himself, his relatives or dependents:

- No Government employee shall deal, in his official capacity, with any matter which directly or indirectly concerns himself or any of his relatives or dependents.

24.

Influencing authorities for furtherance of interests:

(1)

No Government employee shall bring or attempt to bring any extraneous influence to bear upon any authority for the furtherance of his interests.

(2)

A Government employee causing his own case to be made the subject of an interpellation in either House of Parliament or State Legislature or of discussion in the Andhra Pradesh Regional Committee shall be deemed to have contravened the provisions of sub-rule (1).

(3)

It will be improper for a Government employee who makes any representation to the competent authority through the proper channel, to bother the higher authorities with advance copies thereof :

Provided that a Government employee may send a copy of any representation made to the competent authority through the proper channel, direct to the higher authorities if the representation is made after exhausting such of the statutory remedies as were open to him and after receiving intimation that his representation has been withheld.

25.

Bigamous marriages:

(1)

No Government employee who has a wife living shall contract another marriage without first obtaining the permission of the Government, notwithstanding that such subsequent marriage is permissible under the personal law for the time being applicable to him :

[Provided that where the personal law provides for second or subsequent marriage, the Government employee shall while seeking permission to contract another marriage, produce documentary evidence in support of "Divorce or Talaq" in respect of previous marriage and the manner in which the same was secured or pronounced and intimated to the first or former wife.]

[Added by G.O.Ms.No. 168, GA (Ser-C), Dated 5-3-1990]

(2)

[No female Government Servant, whether unmarried or widowed or divorced, as the case may be, shall marry any person who has a wife living without first obtaining the permission of the Government, though the parties are governed by the personal law which otherwise permits contracting more than one marriage while the prior marriage is subsisting.]

[Substituted by G.O.Ms.No. 168, GA (Ser-C), Dated 5-3-1990]

25A.

No Government servant shall:

-

(i)

give or take or abet in giving or taking of dowry; or

(ii)

demand, directly or indirectly, from the parents or guardian or a bride or bridegroom as the case may be, any dowry.

Explanation: - For the purpose of this rule "dowry" has the same meaning as in the Dowry Prohibition Act, 1961 (Central Act No. 28 of 1961).

[26. Drinking: - Notwithstanding anything contained in the provisions of any law relating to intoxicating drinks or drugs for the time being in force in any area, no Government employee shall-

(i)

while on duty, be under the influence of such drinks or drugs to such an extent as to render him incapable of discharging his duty properly and efficiently; or

(ii)

appear in a public place in a state of intoxication; or

(iii)

consume such drinks or drugs in excess.]

27.

Interpretation:

- If any question arises relating to the interpretation of these rules, the decision of Government thereon shall be final.

28.

Repeal:

-The Government Servants' Conduct Rules, 1958, are hereby repealed :

Provided that such repeal shall not affect the previous operation of any action taken or orders or instructions issued thereunder, and subject thereto, anything done or any action taken under the rules so repealed shall be deemed to have been done or taken under these rules.

29.

Savings of other laws:

- The provisions of these rules shall be in addition to, and not in derogation of, any other law or order of any competent authority, for the time being in force, regulating the conduct of Government employees in the State.

Annexure - I

[G.O.Ms.No. 52, G.A. (Ser-C) Department, Dated 4-2-1981]

Statement of immovable property possessed, acquired and disposed of by Sri..... or any other person on his behalf or by any Member of his Family during year ending.....

[Sub-rule (7) of Rule 9 of A.P.C.S. (Conduct) Rules, 1964]

Nature of property

Situation of Property (Survey/Municipal Number

with extent

Held in whose name

Date & mode of acquisition/disposal

Price paid/obtained

Source of payment

Whether information given or sanction obtained

with reference No. and date.

Annual income from property.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

1. House

2. Flat

3. Shop

4. House Plot

5. Agril. land

(dry or wet)

6. Any other

Immovable

property

Note: - Details of Acquisition of properties standing in the name of Hindu undivided family or partnership in which the officer holds a claim or should be separately shown in the Statement.

Annexure - II

(G.O.Ms.No. 52, G.A. (Ser-C) Department, Dated 4-2-1988)

Statement of movable property possessed, acquired and disposed of by Sri..... or any other person on his behalf or by any Member of his Family during year ending.....

[Sub-rule (7) of Rule 9 of A.P.C.S. (Conduct) Rules, 1964]

Name of the Property

Held in whose name

Date and mode of acquisition/disposal

Name & Address of person from whom

acquired/to whom disposed of

Whether transaction done within the limits of

jurisdiction

Price paid/obtained

Source of payment

(1)

(2)

(3)

(4)

(5)

(6)

(7)

[Movables whose value exceeds rupees fifty thousands.]

[Substituted by G.O.Ms.No. 681, G.A. (Ser.-C), Dated 11-9-2007]

Vehicles:

Motor Car

Motor Cycle/Scooter

Any other vehicle.

Electrical goods:

Air Conditioner

V.C.R./Television

Refrigerator

Any other goods

Jwellery:

Ornaments

Vessels etc.

Investment & Cash :

Bank deposits

Debentures/Shares,

Bank balance etc.

Furniture:

Livestocks :

Any other goods :

Note: - Details of acquisition of properties standing in the name of Hindu undivided family or partnership in which the officer holds a claim or share should be separately shown in the Statement.

[Annexure - III

[Annexure III added by G.O.Ms.No. 354, G.A.D., Dated 8-8-96]

(See Rule 6-A)

Intimation of Foreign Currency/Goods received by the Government Employee Sri..... under Rule 6-A of the Andhra Pradesh Civil Services (Conduct) Rules, 1964

1. Name of the Government Servant :

2. Designation & Official Address :

3. Department to which he belongs :

4. Date of receiving/accepting of foreign currency/goods :

5. Nature of foreign currency/goods received/accepted :

6. Sources from which received/accepted :

7. Reason/Purpose for which the foreign currency/goods were received/accepted :

8. The relationship of the sender to the recipient and name, occupation and full address of the sender :

9. Whether the foreign currency/goods received/accepted were intimated to the concerned authorities and customs or to the appropriate authority :

10. Whether the foreign currency/goods received/accepted were declared to Income Tax Department. If so, details to be furnished :

11. Mode and method of receipt/acceptance of the foreign currency/goods by the Government Employee/his dependents :

12. Whether the Government Employee is having any official dealings from whom the foreign currency/goods were received/accepted :

13. Details of any expenditure incurred by the Government employee/receipt/acceptance of the foreign currency/ goods Station :

Date :

Signature of the Government Employee]

Executive Instructions

1. Association of Government Servants with R.S.S.

(Memo. No. 3408/Ser-C/66-1, Dated 16-1-1967)

Order: - The attention of the Heads of Departments etc., is invited to sub-rule (1) of Rule 19 of the Andhra Pradesh Civil Services (Conduct) Rules, 1964 under which no Government employee shall be a member of or be otherwise associated with, any political party or any organisation which takes part in politics; not shall he participate in, subscribe in aid of, or assist in any other manner, any political movement or activity.

As certain doubts have been raised about Government's policy with respect to the membership of and participation in the activities of the Rashtriya Swayam Sewak Sangh and the Jamaat-e-Islami by Government servants, it is clarified that Government have always held the activities of these two organisations to be of such a nature that participation in them by Government servant would attract the provisions of sub-rule (1) of Rule 19 of the Andhra Pradesh Civil Services (Conduct) Rules, 1964. Any Government Servant, who is a member of or is otherwise associated with the aforesaid organisations or with their activities is liable to disciplinary action.

2. Political Organisations - Participation.

(Memo. No. 1552, G.A.D. (Ser-C), Dated 7-6-1969)

Order: - The attention of the Heads of Departments etc., is invited to sub-rule (1) of Rule 19 of the Andhra Pradesh Civil Services (Conduct) Rules, 1964 under which no Government employee shall be a member of or be otherwise associated with, any political party or any organisation which takes part in politics, nor shall participate in, subscribe in aid of, or assist in any other manner, any political movement or activity. The attention of the Heads of Departments etc., is also invited to sub-rule (4) of the said rule under which if any question arises as to whether any movement or activity falls within the scope of the said rule, the decision of the Government thereon shall be final.

2. In the Memo. cited, Government have clarified that they have always held the activities of Rashtriya Swayam Sewak Sangh and Jamaat-e-Islami organisations to be of such a nature that participation in them by Government servants would attract the provisions of sub-rule (1) of Rule 19 of the Andhra Pradesh Civil Services (Conduct) Rules, 1964 and that any Government servant who is a member of or is otherwise associated with the aforesaid organisations, or which their activities is liable for disciplinary action.

3. The Government have reviewed the policy, to be followed in regard to the social, cultural and similar other organisations known to be connected with political parties. Government consider that it is essential that Government servants should not only maintain political neutrality but should also appear to do so. Government, therefore, direct that if there is the slightest reason to think that any organisation has a political aspect, a Government servant should keep away from it so that no doubt may be created about his neutrality.

3. Permission to join Evening Colleges.

(U.O. Note No. 434/57-1, G.A. (Ser-C). Department, Dated 16-1-1957)

Order: - Evening Colleges, which function after office hours, have been providing education for Government Servants and those employed in other institutions in Hyderabad and Secunderabad. The Government of Hyderabad issued orders that Government servants intending to join the Evening Colleges could do so by obtaining the permission of the Head of the Department in the case of Non-Gazetted Officers and of the Government in the case of Gazetted Officers. Those orders have now ceased to have effect after integration but the Government have decided that those orders may be allowed to stand and be extended to all Government servants of Andhra Pradesh in the cities of Hyderabad and Secunderabad subject to the condition that this should not in any way be allowed to interfere with the official duties of the Government servants.

4. Permission to join Evening Colleges – Delegation of powers to Heads of Departments to permit Gazetted Officers.

(Memo. No. 2209/Ser-C/731, G.A. (Ser-C) Department, Dated 7-1-1974).

Order: - According to the U.O. Note cited, Government servants of A.P. are allowed to join evening colleges by obtaining the permission of the Heads of Departments in the case of Non-Gazetted Officers and of the Government in the case of Gazetted Officers. The Board of Revenue has proposed to Government that powers of granting permission to all Gazetted Officers working under its control to join evening colleges be delegated to the Board of Revenue.

2. The Government after careful examination of the above proposal of the Board of Revenue delegate powers to the Board of Revenue and all other Heads of Department to permit the Gazetted Officers working under them to join evening colleges, subject to the condition that this should not, in any way, interfere with or be detrimental to the discharge of their official duties.

5. Permission to join Evening Colleges - Further instructions.

(Memo. No. 609/Ser-C/78-1, G.A. (Ser-C) Department , Dated 6-4-1978).

Order: - According to the orders contained in U.O. Note cited, Government servants may join evening colleges by obtaining the permission of the Head of Departments in the case of non-gazetted officers and of the Government in case of Gazetted Officers. In the Memo. cited, powers have been delegated to all Heads of Departments to permit the Gazetted Officers working under them to join evening colleges subject to the condition that this should not, in any way, interfere with or be detrimental to the discharge of their official duties.

2. It has been brought to the notice of the Government that some universities have started correspondence courses for the degree course and joining the colleges is not necessary for these courses. The question whether prior permission of the Government or other competent authorities, as for regular evening classes, is necessary in respect of Government employees who intended pursuing these study courses has been examined by the Government. In order to enable the competent authorities to stipulate the condition that the pursuit of the study course (by correspondence) does not in any way interfere with the official duties of the Government servants, the Government have decided that prior permission of Government or the heads of Departments as the case may be, is necessary in such cases also.

6. Permission to join evening colleges - Further orders.

(Memo. No. 74/Ser-C/82-1, G.A. (Ser-C) Department , Dated 1-2-1982).

Order: - According to the orders contained in the U.O. Note first cited, Government servants may join Evening Colleges by obtaining the permission of the Heads of Departments in the case of non-Gazetted Officers, and of the Government in case of Gazetted Officers, subject to the condition that this should not, in any way, interfere with or be detrimental to the discharge of their official duties. In the Memo, third cited, powers have been delegated to all Heads of Departments to permit Gazetted Officers working under them to join Evening Colleges.

2. Experience has shown that employees who are permitted to study in Evening Colleges have been leaving office abruptly at 5-00 P.M. or even earlier and have been proceeding on leave on the eve of examination or preparation, causing dislocation to office work. It has, therefore, been decided that the following conditions should be imposed while permitting Government Servants to Join Evening Colleges :

(i)

The permission does not ipso facto confer any right on the member of the service who is so permitted for his continued posting at a particular station for the duration of the course;

(ii)

Pursuit of studies by the member of the service should not be detrimental to the efficient discharge of his official duties;

(iii)

Grant of permission will not entitle the member of the service to leave office by any particular time every day. On occasions requiring his presence in office beyond office hours he should ungrudgingly stay in office till the time required.

(iv)

The Government will accept no responsibility for his failure to complete the percentage of compulsory attendance prescribed for the course, if any, on this account;

(v)

The permission will not entitle the member of the service to claim leave either for preparation or for the duration of the examinations; leave, if any required for this purpose will be sanctioned subject to the title and exigencies of work; and

(vi)

The Government reserves the right to withdraw the permission at any time without assigning any reasons.

3. The Heads of Departments and the Departments of Secretariat are requested to take action accordingly.

7. Permission to join Evening Colleges/Morning Colleges - Instruction.

(G.O.Rt.No. 1651, Revenue (Services-IV) Department , Dated 28-10-1991)

Order: - The Collector, West Godavari District in his letter second read above has reported that according to the orders issued in the U.O. Note No. 434/571, G.A. (Ser-C) Department, Dated 16-5-1957, Government Employees are eligible to join evening colleges, by obtaining the prior permission of the Head of the Departments in the case of Non-Gazetted Officers and of the Government in the case of Gazetted Officers, subject to the condition that it should not in any way, interfere with or be detrimental to the discharge of their official duties. In the Government Memo. No. 2209/Ser.C/73-1, G.A. (Ser.C) Department, dated 17-1-1974 powers have also been delegated to all the Heads of Departments to permit non-Gazetted Officers working under them to join evening colleges. In Government Memo. No 74/Ser.C/ 82-1, G.A.

(Ser.C) Department, Dated , 1-2-1982 Government have issued orders imposing certain conditions, while permitting Government employees to join evening colleges.

2. The Collector, West Godavari District has reported that there is a morning college at Bhimavaram, West Godavari Dist., to study B.L. and the studies in the morning session are from 7-30 A.M. to 10.00 A.M. and that some of the Government employees of Bhimavaram town have applied for grant of permission to study B.L. in the morning session (i.e.) from 7.30 A.M. to 10.00 A.M. The employees have represented that their studies in the morning session do not in any way, interfere with or are detrimental to the discharge of their official duties, and therefore, they have requested to grant of permission to prosecute studies in the morning college at Bhimavaram.

3. The Collector has further pointed out that as per the U.O. Note No. 434/57-1, G.A. (Ser.C) Department , Dated 16-5-1957 the permission was confined to the studies in the evening sessions only and that in the day to day administration morning hours are more precious and loss of 2-1/2 hours from 7-30 A.M. to 10-00 A.M. is very much difficult to adjust. He has, however, sought for clarification from the Government whether Government employees (Non-Gazetted) may be permitted to join in the morning session in the college to pursue private study without detrimental to the discharge of their official duties.

4. The orders in the U.O. Note No. 434/Ser.C/57-1, GAD, Dated 16-5-1957 granting permission to the employees to join evening colleges for studies were issued when there were evening colleges. Now, there are morning colleges also from 7-30 A.M. to 10-00 A.M. before office hours, the Government consider that the orders already issued may equally apply for the studies in the morning colleges also.

5. In view of the above, the Collector, West Godavari District is requested to grant permission to Government employees (Non-Gazetted) working under him to join in the morning session college, Bhimavaram to study B.L., imposing the conditions laid down in the Government Memo. 1st read above. He is however, requested to modify the condition 3 in the said order indicating that "on occasion requiring his presence in office before office hours, the individual should ungrudgingly attend office".

6. Suitable amendment to the A.P. Civil Services (Conduct) Rules will be issued separately by General Administrator (Ser.C) Department.

7. The Collector, West Godavari District is requested to take further action accordingly.

8. Facilities for the Government Servants for writing books.

(G.O.Ms.No. 553, Administrator (Services-C) Department , Dated 8-8-1974)

Ref: - 1. From the Dir. of Tech. Edn, L. No. C4/5120/1971, Dated 9-3-1971.

2. From the Government of India, Ministry of Education and Social Welfare, letter No. L. 10-4/70-D, II, Dated 10-6-1971.

3. From the Dir. of Public Instruction, L. No. 130/C3/72, Dated 17-11-1972.

Order: - In their letter second cited, the Government of India have stated that it was brought to their notice that authors and prospective authors who are employees of the State Government are hampered in the undertaking of literary or text book writing work during their spare hours for two reasons, namely, (i) that prior permission of the competent authority in State Government is required for undertaking any such work; and (ii) that a certain percentage, of the royalty fee or honorarium received by the staff members who undertake such work is required to be credited to Government. They have added that the State Government/Union Territory Administrations will agree that every encouragement should be given to the staff members for undertaking literary work or text books writing in the context of present policy for striving towards meeting indigenously the entire needs for textbooks and/or reference material at all levels and other books and that there is dependence upon imports to a significant extent. This is more true in the field of modern technology and comparatively in the field of science and technology, import of books from foreign quarters is considerably higher than in other disciplines.

Besides, the area of operations in technological pursuits is widening in the field of science and technology our progress has been slow. During the past two decades, sufficient talents have been developed in all branches of knowledge and it could be expected that production of books in the country could be handled with sufficient proficiency. What is necessary is to motivate and sustain urge among the intellectuals in the respective fields to contribute their specialised skills with suitable State assistance freed from the usual administrative bars.

2. The Government of India have stated that under the relevant rules of the Government of India, it is necessary for a Central Government servant to obtain prior permission to undertake any work for a private or public body or private person, but no such permission is required for an essential work of a literary, cultural, artistic, scientific or technological

character, provided it does not interfere with his official duties and responsibilities. Further, the income derived from literary, cultural or artistic or scientific or technological efforts not aided by knowledge acquired by the Government servant in the course of his service is excluded from the purview of supplementary Rule 12 and no portion of such income is required to be credited to the General Revenues of the Government. Even in the case of income derived by a Government servant from the sale of royalties on books written by him with the aid of knowledge acquired during the course of his service the restriction of S.R. 12 (i.e., crediting to the General Revenues of the Government one third of any fee in excess of Rs. 400/- or if a recurring fee of Rs. 250/- a year is relaxed if such book is not a mere compilation of Government rules, regulations or procedure but reveals the author's scholarly study of the subject.

3. The Government of India have requested that the staff members under the State Government may be afforded facilities in their pursuits by (i) liberally granting them permission to undertake literary work or text book writing work during their spare hours; and (ii) exempting royalties from any deductions from Government on the lines of the Central Government though this will be subject to income-tax.

4. The Institute of Engineers (India), Hyderabad in its letter, Dated 20-1-1971 stated that it examined ways and means to enrich the technical knowledge and information in the country with a view to smoothen the march of industrial progress and found it necessary to encourage the writing of technical books by Indian Engineer-authors by providing them suitable incentives if necessary and requested that in the larger interest of the technical advancement of the country Government may abolish the restrictions under Rule 13 of the A.P.C.S. (Conduct) Rules and the provision for surrender to Government of a portion of their financial earnings from publication of books or royalty. The Director of Technical Education in his letter first cited recommended that Government might issue general orders relaxing the provisions of Rule 13 of the said Rules, to enable the Engineers and teachers under the State Government to take up the writing of technical books and publications. The Director of Public Instruction who was consulted in regard to the Government of India's letter has stated in his letter 3rd cited, that there is already a provision in the Government Servants Conduct Rules that no permission is required for occasional work of a literary, cultural, artistic or technological character and that in our State the text-books are nationalised and the deserving people are being offered the text book writing.

5. Government have carefully examined the matter in consultation with Finance and direct that-

(1)

permission to undertake literary work or the writing of text books (writing work) be liberally granted to Government employees.

(2)

the income derived by a Government servant from the sale or royalties of the books written by him without the aid of knowledge acquired during the course of his service but with his scholarly study of the subject, be exempted from any portion thereof being credited to the Government, and that necessary provision may be in Fundamental Rules and Hyderabad Civil Service Rules etc.

9. Grant of permission to Government servants to undertake part-time work in non-Government Institutions and to receive remuneration therefor

(U.O. Note No. 494/Ser-C/68-1, G.A. (Ser-C) Department, Dated 16-3-68)

Order: - Under Rule 12 of the Andhra Pradesh Civil Services (Conduct) Rules, 1964 no Government employee shall, except with the previous sanction of the Government, undertake any employment or work other than that connected with his official duties. Proposals are often received from the Heads of Departments for Government permission to allow Government servants to undertake part-time work.

The question whether Government servants should be allowed to undertake part time work in non-Government institutions and to receive remuneration therefor was considered by the Services Sub-Committee of Secretaries to Government held on 23rd and 24th February, 1968. The Committee considered that Government servants are whole time employees and it would be inadvisable to allow them to undertake part time work in non-Government institutions and receive remuneration therefor.

The above recommendation of the Services Sub-Committee has been accepted by the Government. Departments of Secretariat are therefore requested not to countenance proposals for grant of permission to Government servants to undertake part time work in non-Government institutions.

10. Adoption of Andhra Pradesh Civil Services (Conduct) Rules for the Employees of Panchayati Raj Bodies

(G.O.Ms.No. 156, P.R. (Samithi-I), Dated 1-3-1983)

I. In exercise of the powers conferred by the proviso to Art. 309 of the Constitution of India read with sub-section (3) of

Section 36 of the Andhra Pradesh Gram Panchayats Act, 1964 and in suppression of the Rules relating to the Personal Conduct contained in Chapter IX of the Andhra Pradesh Gram Panchayats Establishment Rules issued in G.O.Ms.No 154, Panchayati Raj, dated 15th March. 1974, the Governor of Andhra Pradesh hereby orders that the Andhra Pradesh Civil Services (Conduct) Rules issued in G.O.Ms.No. 468, General Administration (Ser.) Department, dated 17th April, 1964 as amended from time to time shall govern the personal conduct of the employees specified in sub-section (1) of Section 36 of the Andhra Pradesh Gram Panchayats Act, 1964 with effect from 6th February, 1981.

II. In exercise of the powers conferred by the proviso to Art. 309 of the Constitution of India read with sub-section (4) of Section 26 and sub-section (4) of Section 51 of the Andhra Pradesh Panchayat Samithis and Zilla Parishads Act, 1959 and in supersession of the Rules regulating the personal conduct of employees in Panchayat Samathi and Zilla Parishads issued in G.O.Ms.No. 473, Panchayati Raj, dated 7th April, 1962, the Governor of Andhra Pradesh hereby orders that the Andhra Pradesh Civil Services (Conduct) Rules issued in G.O.Ms.No. 468, General Administration Department, dated 17th April, 1964 as amended from time to time shall govern the employees of Panchayati Raj bodies specified in sub-section (1) of Section 26 and sub-section (1) of Section 51 of the Andhra Pradesh Panchayat Samithis and Zilla Parishads Act, 1959 with effect from 6th February, 1981.

11. Canvassing of non-official or other outside influence by Government Servants - Reg.

(Memo. No. 87878/Ser.C/97-2, G.A.(Ser.C) Department , Dated 9-1-1998)

Ref : - 1. Department of Personnel & Training, Ministry of Personnel, Public Grievances and Pensions, Government of India Lr. No. 11013/12/94 Estt(A) Department , Dated 12-1-95

2. Department of Personnel & Training, Ministry of Personnel, Public Grievances and Pensions, Government of India Lr. No. 11013/11/97 Estt(A) Department , Dated 6-11-1997.

Order: - Copies of the references cited are communicated herewith for taking necessary action.

2. The Department of Secretariat, Heads of Departments, District Collectors are requested to bring these instructions to the notice of all concerned for strict compliance.

3. The receipt of this Memo. should be acknowledged.

Copy of...

O. M. NO. 11013/12/94-Estt. (A)

GOVERNMENT OF INDIA

Ministry of Personnel P.G and Pensions

Department of Personnel and Training

New Delhi, Dated: 12-1-95

OFFICE MEMORANDUM

Procedure for dealing with the Government Servants attempting to further their service interests through non-Governmental influence instructions with reference to Rule 20 of the CCS (CONDUCT) Rules, 1964 - Regarding.

Rule 20 of the CCS (Conduct) Rules, 1964 provides that no Government Servant shall bring or attempt to bring any political or any other outside influence to bear upon any superior authority to further his/her interest in respect of matters pertaining to his/her service under the Government. The Government of India has, from time to time, emphasised that Government Servants should not approach Members of Parliament or State Legislatures or other political/outside authorities to sponsor their cases in respect of service matters. As per the existing instructions, vide O.M. No. 11013/7/95-Estt. (A) dated 22-5-85, the following action should be taken against Government Servants approaching Members of Parliament or State Legislatures for sponsoring individual cases:

(i)

A Government employee violating the aforesaid provisions of the Conduct Rules for the first time should be advised by the appropriate disciplinary authority, to desist from approaching Members of Parliament/Members of State Legislature to further his/her interest in respect of matters pertaining to his/her service conditions. A copy of this advice need not, however, be placed in the CR dossier of the employee concerned.

(ii)

If a Government employee is found guilty of violating the aforesaid provisions of the Conduct Rules a second time despite the issue of advice on the earlier occasion, a written warning should be issued to him/her by the appropriate disciplinary authority and a copy thereof should be placed in his/her CR dossier.

(iii)

If a Government employee is found guilty of violating the aforesaid provisions of the Conduct Rules, despite the issue of

warning to him/her, disciplinary action should be initiated against him/her, by the appropriate disciplinary authority under the provisions of CCS (CCA) Rules, 1965.

2. In spite of these instructions, cases of individuals Government Servants continue to be sponsored by public representatives/outside authorities. After careful consideration of all aspects of the matter it has been decided that the following procedure may be adopted for dealing with communications from public representatives/outside authorities relating to the service matters of Government employees.

(a)

Communications received from public representatives regarding problems of groups/categories of Government functionaries must be entertained and dealt with on a time bound basis. In all such cases, after due examination, appropriate replies would continue to be issued at the level of the Minister concerned.

(b)

All communications from public representatives relating to the grievances of the retired personnel should receive the same consideration and be dealt within the same way as outlined in (a) above.

(c)

In cases in which a public representative sponsors the cause of an individual Government Servant (eg. recruitment, appointment, promotion, posting to a particular station, appointment to a specific position, complaints against supersession expunction of adverse remarks, allotment of Government accommodation, etc.) a formal reply should continue to be sent from the Minister acknowledging the receipt of the communication stating that the contents of the letter have been noted and where necessary, suggesting that the person whose case has been recommended, may be advised to represent his case through proper official channels. All such communications addressed to the Minister shall be replied to at, his/her level. In all such cases the formal reply given by the Minister shall be deemed to dispose off the communication unless there are further directions from the Minister in the matter.

3. All Ministries/Departments/Offices etc., are requested to bring the above instructions to the notice of all concerned under their control and take action against the Government servants who violate the provisions of the Conduct Rules as prescribed in para 1.

Copy of :

No.11013/11/97-Estt.(A)

GOVERNMENT OF INDIA

Ministry of Personnel, P.G and Pensions

(Department of Personnel and Training)

New Delhi, Dated: 6-11-1997

OFFICE MEMORANDUM

Sub: Canvassing of non-official or other outside influence by Government Servants.

As the Ministries/Departments are aware, bringing or attempting to bring any political or other outside influence by a Government servant to bear upon any superior authority to further his interest in respect of service matters pertaining to his service under the Government is prohibited under the provisions of the Conduct Rules. Detailed procedure for dealing with the Government Servants attempting to further their service interests through non-governmental influence has been prescribed in this Department's O.M. No.11013/12/94- EAt(A), Dated 12-1-1995

2. In spite of these instructions, it has come to the notice of this Department that certain Government Servants are bringing to bear the outside influence indirectly to further their service interests. It is clarified that bringing of indirect influence by Government Servant would also attract the provisions of the Rule 20 of the CCS (Conduct) Rules, 1964.

3. All Ministries/Departments/Offices etc., are requested to bring the existing instructions/ rules to the notice of all concerned under their control and to take effective action against the Government servants who bring or attempt to bring outside influence to further their service interests as prescribed in the O.M. dated 12-1-1995.

12. Maintenance of Lists of Officers of Doubtful integrity and Suspect Officers - Instructions - Issued.

(G.O. Ms. No. 232, G.A.(Spl-C) Department , Dated 06-08-2003)

Note : - See Executive Instruction No. 18 given under Rule 9 of CCA Rules of this Book.

13. Andhra Pradesh Civil Services (Conduct) Rules, 1964 - Certain Guidelines/Instructions - Issued.

(Cir. Memo. No. 30554/Ser.C/2006, G.A.(Ser.C) Department , dated 24-08-2006)

Ref.: - 1. G.O.Ms. No. 468, G.A. (Ser.C) Department , Dated 17-04-1964.

2. G.O.Ms. No. 433, G.A. (Ser.C) Department , Dated 24-08-2006.

Order: - In the G.O. 2nd cited, orders were issued amending Rule 16(1) of Andhra Pradesh Civil Services (Conduct) Rules, 1964 duly incorporating a provision enabling the competent authority to accord sanction to the Government employees to participate in Drama or Tele-Serial or Feature Film. In the absence of specific guidelines/ instructions in this regard certain instances have come to the notice of the Government that the competent authorities are facing some difficulties in according sanction to Government employees to participate in Radio Broadcasting, Drama, Tele-Serials or Feature Films.

2. Government after careful consideration of the matter hereby issue the following guidelines / instructions to enable the competent authorities to accord sanction to the Government employees to participate in Radio Broadcasting, Dramas, Tele-Serials and Feature Films or to contribute any article or write any letter as per Rule 16(1) of the Andhra Pradesh Civil Services (Conduct) Rules, 1964.

(i)

Permission shall be accorded by the competent authority, subject to condition that such permission shall be without detriment to the official duties, since the Government servant as a matter of fact is a servant for 24 hours and should be available whenever called for.

(ii)

The remuneration received in this regard shall be included in the In-come Tax Return of the employee as per the provisions of the Income Tax Act and the rules made thereunder.

3. All the Departments of Secretariat, all Heads of Departments and District Collectors are requested to bring instructions to the notice of the concerned authorities under their control and ensure that the same are strictly adhered to.

14.

A.P. Civil Services (Conduct Rules), 1964 - Submission of Annual Property Returns by employees promptly - Reiteration of Government Instructions - Regarding.

(Cir. Memo. No. 695/Ser.C/2006, G.A. (Ser.C) Department , Dated 12-10-2006)

Ref. : – 1. Government Memo. No. 442/SC.E/I 983-1, GA(SC.E) Department , Dated 27-12-1983.

2. Government Memo. No. 762/SC.D/1 983-1, G.A. (SC.D) Department , Dated 21-05-1986.

3. Cir. Memo. No. 76883/Ser.C/98, G.A. (Ser.C) Department, Dated 12-12-1998.

4. Cir. Memo. No. 8832/Ser.C/03-1, G.A. (Ser.C) Department, Dated 29-01-2003.

5. Memo. No. 94649/Ser.C/2003, G.A. (Ser.C), Department , Dated 31.07.2003.

6. From the Director General, Anti-Corruption Bureau, Lr.Rc.No. 114/RE-Cr.2/2001-S2, Dated 22.11.2005.

Order: - According to sub-rule (7) of rule 9 of A.P. Civil Services (Conduct) Rules, 1964, every Government employee other than a member of the A.P. Last Grade Service and a Record Assistant in the A.P. General Sub-Ordinate Service, invariably has to submit his / her statement of all immovable / movable (values exceeding Rs.20,000/-) properties owned, acquired or inherited by him / her, his / her family members in the prescribed proforma in the said rule as Annexures I and II before 15th January of each year.

2. According to sub-rule (8) of rule 9 of the Andhra Pradesh Civil Services (Conduct) Rules, 1964, the Government or any authority empowered by them in this behalf may at any time by general or special order, require a Government employee to submit within a specified period, a full and complete statement of all immovable properties and movable properties.

3. Keeping the observations in the Annual Report of A.P. Vigilance Commission for the year 1996-1997, instructions were issued in the reference third cited directing the Controlling Officers or Chief Vigilance Officers / Vigilance Officers of Concerned Departments to scrutinise thoroughly the Annual Property Returns submitted by their subordinates and call for the clarifications from the Government Departments in case of doubts and to ensure submission of the return by all concerned as such scrutiny would help to check the corruption of the Government employees to some extent at the initial stage itself.

4. Further as per observations made in the High Level Committee Meeting held on 8.1.2003 in the Chambers of Chief Secretary, while reiterating the instructions issued in the references third and fourth cited, the Controlling Officers or Chief Vigilance Officers / Vigilance Officers of concerned Departments were once again requested to ensure that every Government employee other than a member of the Andhra Pradesh Last Grade Service and Record Assistant in the Andhra Pradesh General Sub-ordinate Service invariably submit his / her Annual Property Statement Returns every year by 15th January.

5. The Director General, Anti-Corruption Bureau, A.P., Hyderabad in the reference sixth cited, has informed that in many instances when the concerned authorities are addressed by the Anti-Corruption Bureau for furnishing information pertaining to the Annual Property Returns filed by the Accused Officers and their pay particulars, they are receiving replies stating that no Annual Property Returns are filed or they are not traceable with the Government. But the Annual Property Returns are required for the purpose of proving the case of assets disproportionate to the known sources of income of a Government Servant or otherwise. He has therefore requested to issue orders to the concerned authorities / Departments for strict compliance of sub-rule (7) of Rule 9 of the Andhra Pradesh Civil Services (Conduct) Rules, 1964 and also requested to make the concerned controlling Officers accountable for ensuring that all Subordinate Officers file Annual Property Returns as per the Rules.

6. While reiterating the instructions issued in the references third & fourth cited, Government further direct the Controlling Officers or Chief Vigilance Officers / Vigilance Officers of concerned Departments to ensure that every Government employee other than a member of the Andhra Pradesh Last Grade Service and Record Assistant in the Andhra Pradesh General Sub-ordinate Service, in variably submit his/her Annual Property Statement Returns every year by 15th January as required under sub-rule (7) of Rule 9 of the Andhra Pradesh Civil Services (Conduct) Rules 1964. It may be impressed on the employees that non-compliance of such instructions will attract disciplinary action.

7. The Heads of Departments concerned shall ensure that the employees under their control submit the Annual Property Statements and a certificate should be submitted to this effect by the Heads of Departments to the concerned Administrative Department as Secretariat level.

8. All the Special Chief Secretaries / Principal Secretaries / Secretaries to Government and Heads of Departments etc., are requested to list out the employees who have not furnished their Annual Property Returns as on 15. 1.2005 and thereafter issue show cause notices to each as to why disciplinary action shall not be taken against them and if within a reasonable time thereafter the Annual Property Returns are not received, or if the explanation to the query raised is not given or if given, but found not satisfactory, then they are requested to award "Censure" to the employee concerned.

9. All the Departments of Secretariat, all Heads of Departments, and all District Collectors are requested to bring the above rule position to the notice of all the employees working under their control for their strict compliance.

15. Declaration of Personal Cash by the Government Officials at the time of reporting to their duty - Orders - Issued.

(G.O. Ms. No. 200, G.A. (Ser-C) Department , Dated 26-03-2007)

Ref. : - From the Director General, Anti-Corruption Bureau,

D.O. Lr. No. 154/PRC(C)/2002, Dated 12-4-2005 and even letter Dated 13-4-2005.

Order: - Sub-rules 8(A) and 8(B) of Rule 9 of the Andhra Pradesh Civil Services (Conduct) Rules, 1964 reads as follows :-

8. (A)"The Government or any authority empowered by them in this behalf may, require a Government Servant to render a full and true account of the cash found in his possession at any time and such account shall include particulars of the means by which and the sources from which such cash was acquired".

8. (B)"The Government or any authority empowered by them in this behalf may, by general or special order require a Government servant on duty not to keep cash in his possession beyond a specified sum and to declare the cash in his possession in the manner prescribed".

2. The Director General, Anti-Corruption Bureau has requested to enhance the ceiling on possession of personal cash by the staff, which is presently fixed at Rs. 200/- to Rs. 500/- while on duty in office and to put a ceiling of Rs. 10,000/- that an officer can carry during the tour.

3. After careful consideration of the issue, Government direct that all employees of all Departments dealing with cash including revenue collecting Departments shall give a declaration as follows:

(i)
Declaration of personal cash at the time of reporting to duty if in excess of Rs. 500/-

(ii)
Cash may be declared while on tour if in excess of Rs. 10,000/

4. All the Departments of Secretariat, Heads of Departments and District Collectors are requested to bring these orders to the notice of all concerned and implement the above orders scrupulously. The existing process of manner of declaration shall be followed.

[Substituted by G.O. Ms. No. 513, G.A. (Ser-C) Department Dated 19-12-2002]

[Substituted by G.O.Ms.No. 567, G.A. (Ser-C), Dated 15-10-1988]

[Added by G.O.Ms.No. 72, General Administrator (Ser.C), Dated 3-3-1998]

Related AI tags, queries and research notes

Translation